JUSTICE BARRETT delivered the opinion of the Court.

Three federal statutes set the day for the election of Representatives, Senators, and the President. A Mississippi

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ney General, and by the Attorneys General for their respective States as follows: *Rob Bonta* of California, *Philip J. Weiser* of Colorado, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Anne E. Lopez* of Hawaii, *Kwame Raoul* of Illinois, *Anthony G. Brown* of Maryland, *Andrea Joy Campbell* of Massachusetts, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Matthew J. Platkin* of New Jersey, *Raúl Torrez* of New Mexico, *Letitia James* of New York, *Jeff Jackson* of North Carolina, *Dan Rayfield* of Oregon, *Peter F. Neronha* of Rhode Island, *Charity R. Clark* of Vermont, and *Nicholas W. Brown* of Washington; for the Campaign Legal Center et al. by *Adav Noti*, *Danielle Lang*, *Valencia Richardson*, *Jared Davidson*, and *Jane Bentrott*; for the Constitutional Accountability Center by *Elizabeth B. Wydra*, *Brianne J. Gorod*, and *David H. Gans*; for the Democratic Nation Committee by *Donald B. Verrilli, Jr.*, and *Ginger D. Anders*; for Former Election Administrators by *Kevin J. Hamilton* and *Karl J. Sandstrom*; for Fourteen United States Senators by *Amy J. Mauser*; for Individuals and Organizations Representing Military and Overseas Voters by *Leah J. Tulin*, *Justin Lam*, and *P. Benjamin Duke*; for the Lawyers' Committee for Civil Rights Under Law et al. by *Damon T. Hewitt*, *Robert N. Weiner*, *Olivia N. Sedwick*, *Jim Pastore*, and *Stephanie Thomas*; for the League of United Latin American Citizens (LULAC) by *Norman L. Eisen*, *Mimi Marziani*, and *Jon M. Greenbaum*; for the League of Women Voters et al. by *Sophia Lin Lakin*, *Ari Savitzky*, *Davin Rosborough*, *Theresa J. Lee*, and *Cecillia D. Wang*; for Local Election Officials et al. by *Jonathan Miller*, *Michael Adame*, and *David Chiu*; for the National Congress of American Indians et al. by *Jacqueline D. De León*, *Samantha D. Blencke*, *Morgan E. Saunders*, and *Wesley James Furlong*; for the National Defense Committee by *John N. Maher*, *Kevin J. Mikolashek*, and *Samuel F. Wright*; for National Security Leaders for America by *Daniel C. Schwartz*, *Benjamin J. Hogan*, *Richard E. Finneran*, and *Jean-Claude André*; for the Society for the Rule of Law Institute by *Richard Bernstein* and *Nancy A. Temple*; and for Corey J. Biazzo, *pro se*.

Briefs of *amici curiae* urging affirmance were filed for the State of Montana et al. by *Austin Knudsen*, Attorney General of Montana, *Christian B. Corrigan*, Solicitor General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Raúl Labrador* of Idaho, *Brenna Bird* of Iowa, *Kris W. Kobach* of Kansas, *Mike Hilgers* of Nebraska, *Alan Wilson* of South Carolina, and *Marty J. Jackley* of

law permits the counting of absentee ballots postmarked by election day but received up to five days later. We must decide whether the federal election-day statutes preempt Mississippi's law. They do not.

I

A

The Constitution's Elections Clause empowers state legislatures to "prescrib[e]" the "Times, Places and Manner of holding" congressional elections. Art. I, § 4, cl. 1. Congress may "'override'" most of these choices. *Foster* v. *Love*, 522 U. S. 67, 69 (1997) (quoting *U. S. Term Limits, Inc.* v. *Thornton*, 514 U. S. 779, 833 (1995)). By "default," however, "responsibility for the mechanics of congressional elections" belongs to States. *Foster*, 522 U. S., at 69. As Alexander Hamilton put it, the Constitution lodges power over congressional elections in state legislatures "primarily" and in Congress "ultimately." The Federalist No. 59, p. 362 (C. Rossiter ed. 1961).

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The Constitution's system for Presidential elections is similar. State legislatures may "direct" the "Manner" of ap-

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South Dakota; for the Secretaries of State of Louisiana and Wyoming by *William T. Thompson*; for the Center for Election Confidence, Inc., et al. by *Christopher E. Mills*; for Citizens United et al. by *William J. Olson*, *Jeremiah L. Morgan*, *Michael Boos*, and *Patrick M. McSweeney*; for Members of United States Congress et al. by *Jay Alan Sekulow*, *Jordan A. Sekulow*, *Stuart J. Roth*, *Andrew J. Ekonomou*, *Nathan J. Moelker*, and *Liam R. Harrell*; for the National Republican Congressional Committee et al. by *Charles R. Spies* and *Robert L. Avers*; for the Public Interest Legal Foundation et al. by *J. Christian Adams*; and for Wisconsin Voter Alliance et al. by *Erick G. Kaardal*.

Briefs of *amici curiae* were filed for the State of Alaska by *Stephen J. Cox*, Attorney General of Alaska, and *Jenna M. Lorence*, Solicitor General; for Citizens for New Jersey Election Integrity et al. by *Dana Wefer*; for the Claremont Institute's Center for Constitutional Jurisprudence by *John C. Eastman* and *Alexander Haberbush*; and for Michael T. Morley et al. by *Michael T. Morley, pro se*.

pointing "Electors" to vote for President and Vice President. Art. II, § 1, cl. 2. But "Congress may determine the Time of chusing the Electors, and the Day on which they shall give their Votes." Art. II, § 1, cl. 4.

Initially, Congress allowed States significant leeway with respect to the timing of elections. States had a 34-day window to appoint Presidential electors and exercised total control over the timing of other federal elections. See Act of Mar. 1, 1792, ch. 8, § 1, 1 Stat. 239; J. Stonecash, J. Boscarino, & R. Kersh, Congressional Intrusion To Specify State Voting Dates for National Offices, 38 Publius: J. Federalism 137, 141–142 (2008). As soon became clear, this scheme was not the founding generation's finest. Fraud, or at least allegations of it, ran rampant—because States could hold elections on different days, voters could travel across the country, casting ballots in multiple States. See Cong. Globe, 28th Cong., 1st Sess., 679 (1844); J. Silbey, The American Political Nation, 1838–1893, pp. 147–148 (1991) (Silbey). So in 1845, Congress enacted the first election-day statute, setting Presidential elections for the Tuesday after the first Monday in November. Act of Jan. 23, 1845, ch. 1, 5 Stat. 721.

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Allegations of fraud continued to plague the election of Representatives, which still took place on different days in different States. See Cong. Globe, 42d Cong., 2d Sess., 618 (1872); H. R. Rep. No. 31, 40th Cong., 3d Sess., pt. 2, pp. 77–78 (1869). Having one election day for the President and another for Representatives was also burdensome, because citizens were "forced to turn out" to the polls on "two different election days." *Foster*, 522 U. S., at 73–74. Plus, the results in States with early elections could influence voting in States that lagged behind. *Ibid.* So in 1872, Congress intervened again, mandating that the election of Representatives also take place on a single day—the same Tuesday specified in the Presidential election-day statute. Act of Feb. 2, 1872, ch. 11, § 3, 17 Stat. 28. After the ratification of the Seventeenth Amendment, Congress required Senators to

be elected on the same day as Representatives. Act of June 4, 1914, ch. 103, § 1, 38 Stat. 384. Today, each of the three election-day statutes sets the day for the "election" on a Tuesday in November.

B

In our Nation's early years, voters had to cast their ballots in person in the district where they lived. See, *e. g.*, J. Benton, Voting in the Field: A Forgotten Chapter of the Civil War 4–5 (1915) (Benton). Elections were "lively public events," marked not only by "'continuous electioneering and political arguments'" but also by "'picnics, drinking, and boisterous celebration.'" T. El-Haj, Changing the People: Legal Regulation and American Democracy, 86 N. Y. U. L. Rev. 1, 14 (2011) (quoting Silbey 143). Public assembly was not just a matter of merriment—it also helped ensure that only those qualified to vote did so. See, *e. g.*, E. Evans, A History of the Australian Ballot System in the United States 48 (1917). Ballots were cast "in the company of neighbors and under the watchful eyes of community leaders." D. Collins, Absentee Soldier Voting in Civil War Law and Politics 1–13 (2014) (Ph.D. Dissertation, Wayne State University) (Collins). For instance, under the Pennsylvania constitution, a voter had to vote in "an appropriate election district, in order that his neighbours might be at hand to establish his right to vote if it were challenged, or to challenge if it were doubtful." *Chase* v. *Miller*, 41 Pa. 403, 419 (1862).

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Things started to change during the Civil War, when some States allowed soldiers to vote from afar by absentee ballot. See Benton 4–14. Access to absentee voting expanded throughout the 20th century, and today, every State lets at least some residents vote absentee. In fact, federal law requires States to permit absentee voting in certain circumstances. See 52 U. S. C. § 10502(d).

Due dates for absentee ballots have shifted over time. During the Civil War, States that allowed absentee voting

imposed an election-day deadline for ballot receipt. See *infra*, at 687. But during World War I, States began counting absentee ballots received after election day. See 1918 Md. Laws p. 130; 1919 Kan. Sess. Laws pp. 252–253; see also Cal. Political Code ch. 14, §§1359(b)–(c), 1360, pp. 363–364 (1923). Today, roughly 30 States count at least some absentee ballots mailed by election day but received afterward. See National Conference of State Legislatures, Table 11: Receipt and Postmark Deadlines for Absentee/Mail Ballots (May 18, 2026), https://www.ncsl.org/elections-and-campaigns/table-11-receipt-and-postmark-deadlines-for-absentee-mail-ballots.

Mississippi is among them. In Mississippi, certain residents, like college students away from home and senior citizens, may vote in federal elections by absentee ballot. Miss. Code Ann. §23–15–713 (Cum. Supp. 2025). These voters may dispatch their ballots by mail or common carrier. See §§23–15–637(1)(a), (3). All absentee ballots must be "postmarked on or before the date of the election and received by the registrar no more than five (5) business days after the election." *Ibid.*

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In 2024, the Republican National Committee, the Mississippi Republican Party, and various individuals sued the Mississippi secretary of state and several election officials, contending that federal law prevents Mississippi from counting absentee ballots received after election day. According to plaintiffs, the election-day statutes use the word "election" to refer to two acts: ballot casting and ballot receipt. So by setting the day for the "election," plaintiffs argue, these statutes set the deadline for both. The Libertarian Party of Mississippi filed a similar suit. The District Court consolidated the cases, then granted summary judgment to Mississippi. *Republican National Committee* v. *Wetzel*, 742 F. Supp. 3d 587, 601–602 (SD Miss. 2024).

The Fifth Circuit reversed, holding that Mississippi's statute is preempted because the federal election-day statutes

require ballots to be received by election day. *Republican National Committee* v. *Wetzel*, 120 F. 4th 200, 215 (2024). It denied rehearing and rehearing en banc. *Republican National Committee* v. *Wetzel*, 132 F. 4th 775, 777 (2025). We granted certiorari. 607 U. S. 1020 (2025).

II

A

The question before us is a narrow one about timing. Plaintiffs do not challenge the manner in which Mississippi carries out federal elections. They do not, for example, challenge the general practice of absentee voting. Nor do they challenge the use of the Postal Service or a common carrier to transmit ballots.

Although the election-day statutes refer to a particular "day" for the election, plaintiffs do not contend that everything must occur on that day. For instance, they do not object to early voting or dispute that officials may count votes and certify a winner after election day.

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Finally, this is not a case about the Constitution. We do not consider the scope of Congress's authority to regulate federal elections. The sole question before us is whether counting ballots postmarked by election day, but received up to five days later, violates the federal election-day statutes.

B

The federal election-day statutes do not preempt Mississippi's law. The defining element of an "election"—the term used in all three federal statutes—has always been the electorate's choice of candidate. And a related federal statute, the Uniformed and Overseas Citizens Absentee Voting Act (UOCAVA), confirms that while federal law dictates when ballots must be cast, state law dictates when they must be received.

As we have said before, the federal election-day statutes "simply regulate the time of the election." *Foster*, 522 U. S.,

at 71–72. The statute governing Presidential elections provides that Presidential electors "shall be appointed, in each State, on election day, in accordance with the laws of the State enacted prior to election day." 3 U. S. C. § 1. "'[E]lection day'" is defined as the "Tuesday next after the first Monday in November, in every fourth year succeeding every election of a President and Vice President held in each State." § 21(1). The statute governing House elections "establishe[s]" "the day for the election" of Representatives as the same Tuesday in November in every even-numbered year. 2 U. S. C. § 7. The calendar for Senate elections follows suit: Senators are "elected" at the "regular election . . . at which election a Representative to Congress is regularly by law to be chosen." § 1.

By setting the day for the "election," these statutes set the day when the electorate must make its choice. It is a "fundamental canon of statutory construction that words generally should be interpreted as taking their ordinary meaning at the time Congress enacted the statute." *New Prime Inc.* v. *Oliveira*, 586 U. S. 105, 113 (2019) (internal quotation marks and ellipses omitted). The election-day statutes were enacted and amended across almost two centuries. At all relevant times, the word "election" was understood to mean "[t]he act of choosing a person to fill an office." N. Webster, An American Dictionary of the English Language 433 (C. Goodrich & N. Porter eds. 1869) (Webster 1869); see, *e. g.*, N. Webster, An American Dictionary of the English Language 288 (rev. ed. 1844) ("[t]he act of choosing a person to fill an office"); Webster's New International Dictionary 706 (1914) ("[a]ct of choosing by vote a person to fill an office"); Webster's Third New International Dictionary 731 (2002) ("the act or process of choosing a person for office").

We have likewise defined "election" as the expression of the electorate's choice. "From time immemorial," we have observed, "an election to public office has been in point of

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substance no more and no less than the expression by qualified electors of their choice of candidates." *United States* v. *Classic*, 313 U. S. 299, 318 (1941); see *Republican National Committee* v. *Democratic National Committee*, 589 U. S. 423, 424 (2020) (*per curiam*) (explaining that a "fundamenta[l]" aspect of an election is ballot "cast[ing]," as distinguished from ballot "recei[pt]"). And when we interpreted the election-day statutes for the first (and until now, the only) time, we again emphasized the voters' choice. In *Foster*, we explained that "[w]hen the federal statutes speak of 'the election' of a Senator or Representative, they plainly refer to the combined actions of voters and officials meant to make a final *selection* of an officeholder." 522 U. S., at 71 (citing Webster 1869, p. 433 (defining "election" as "[t]he act of choosing a person to fill an office"); emphasis added).

The electorate's choice is made when voting is complete, not when ballots are received. The most recent amendment to the Presidential election-day statute bears this out. In 2022, Congress inserted the phrase "election day" into that statute and marked that day as a specific Tuesday. 3 U. S. C. § 21(1). It then created an exception: When States "modif[y] the period of *voting*" in response to certain force majeure events, the term "election day" shall "include the modified period of *voting*." *Ibid.* (emphasis added). That Congress defined "election day" with reference to "voting" indicates that "voting" is the act governed by the statute.

A related statute, UOCAVA, reinforces the point. 100 Stat. 924. It is the "most rudimentary rule" of statutory interpretation "that courts do not interpret statutes in isolation, but in the context of the *corpus juris* of which they are a part, including later-enacted statutes." *Branch* v. *Smith*, 538 U. S. 254, 281 (2003) (plurality opinion). And UOCAVA confirms that while Congress has set the date by which absentee ballots must be cast, States have the power to set the date by which they must be received.

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UOCAVA requires States to permit absent military and overseas voters to cast absentee ballots in federal elections. 52 U. S. C. §20302(a)(1). As a backup, it establishes a federal absentee voting system. In detailing this system, UOCAVA repeatedly presupposes that ballot receipt is a matter of state law. For example, it specifies that a federal absentee ballot shall not be valid if the State provides an absentee ballot "at least 60 days before the deadline for receipt of the State ballot under State law." §20303(e)(2). It also mandates that the ballots of overseas military voters be delivered "to the appropriate election officials" "not later than the date by which an absentee ballot must be received in order to be counted in the election." §20304(b)(1). Finally, to avoid any double counting, UOCAVA provides that federal absentee ballots "shall not be counted" if a State receives the voter's state absentee ballot by "the deadline for receipt of [that] ballot under State law." §20303(b)(3). If the election-day statutes established a nationwide ballot-receipt deadline, these references to state ballot-receipt deadlines would make little sense.

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Finally, this interpretation of the election-day statutes is consistent with the way the Constitution treats elections. Although most voting in our country's early days occurred in person—making casting and receipt simultaneous—that was not true of the electoral college. For that, the Constitution establishes a system somewhat analogous to absentee voting: Presidential electors "shall meet in their respective States, and vote by Ballot," and then "transmit" their votes to the "Seat of the Government of the United States, directed to the President of the Senate" for "count[ing]." Art. II, §1, cl. 3. The Constitution requires the "Day on which [the electors] shall give their Votes" to be "the same throughout the United States." Art. II, §1, cl. 4. But it says nothing about the day for receipt, and, of course, 18th-century modes of transmission did not offer same-day delivery. The Constitution therefore envisions a system in which receipt is

necessarily divorced from voting, and it sets the crucial, uniform day as the day of voting, leaving receipt to happen down the line. The federal election-day statutes follow the same pattern: They set when the people "shall give their Votes," *ibid.*, but leave open when those votes must be received.[1]

In sum, the election-day statutes require the electorate's choice to be made on election day. That occurs so long as election day is the deadline for individuals to vote—as it is in Mississippi. But the election-day statutes do not set a deadline for ballot receipt, so they do not prevent Mississippi from counting ballots postmarked before election day yet received afterward.

III

Plaintiffs, echoed by the dissent, accept that the ordinary meaning of "election" is "choice." See Brief for Respondent Libertarian Party of Mississippi 21; Brief for Republican Respondents 17–18; *post*, at 698–701 (opinion of ALITO, J.). Nonetheless, they argue that statutes speaking only of "choice" set a deadline for "receipt." Short on textual support for that proposition, they appeal to historical practice, precedent, and policy. But the historical practice they identify is not dispositive; they overread our precedent; and policy cannot override the words Congress chose.

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When it comes to the ordinary usage of the word "election," there is no dispute. An "election" is "the act of choosing a person to fill an office." Brief for Respondent Libertarian Party of Mississippi 21 (internal quotation marks omitted); accord, *post*, at 700 ("agree[ing]" that an elec-

[1] Indeed, a resolution of the Constitutional Convention equated the "Day fixed for the Election of the President" with the day when the electors "should assemble to vote" and "transmit their votes." 2 Records of the Federal Convention 665–666 (M. Farrand ed. 1911). Only later would the new Congress and President of the Senate convene for "receiving, opening and counting the Votes for President." *Id.*, at 666.

tion is "the expression of the electorate's choice" (internal quotation marks omitted)); Brief for Republican Respondents 17–18 (similar).[2] Still, both the dissent and plaintiffs argue that choice requires more than ballot casting. According to the dissent, ballot receipt is necessary because it renders the electorate's choice "authoritative." *Post*, at 698, 700. But the dissent never says what "authoritative" means, much less why ballot receipt carries this transformative power. Plaintiffs, for their part, suggest that ballot receipt is significant because it marks the point at which we can say "who won." Tr. of Oral Arg. 72. But plaintiffs fail to explain why the electorate's choice is not made until we "know" "who won." *Ibid.* And in any event, we do not know who won when all ballots are received. Many other acts must occur first: Voter qualifications must be adjudicated, ballots authenticated, and votes counted. See Brief for Local Election Officials et al. as *Amici Curiae* 5–12. Plaintiffs have no statutory basis for making ballot receipt the magic moment.

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Lacking a statutory foothold, plaintiffs (tracked closely by the dissent) pivot quickly to their primary argument: historical practice. See, *e. g.*, Brief for Respondent Libertarian Party of Mississippi 14–28; *post*, at 702–708. They emphasize that in the mid-to-late 19th century—around the enactment of the first and second election-day statutes—ballot receipt occurred on election day. See Brief for Respondent Libertarian Party of Mississippi 18–19. And while one might dismiss this timing as a byproduct of in-person voting, plaintiffs

[2] Although the dissent agrees that the word "election" means "choice," it also selectively quotes from two legal dictionaries to suggest that "election" was understood to encompass ballot receipt. See *post*, at 701–702. But those dictionaries define "election" the same way we do—as "[c]hoice," 1 J. Bouvier, Law Dictionary and Concise Encyclopedia 979 (8th ed. 1914) (Bouvier), or "[a] choosing," W. Anderson, Dictionary of Law 394 (1889) (Anderson). The separate language quoted by the dissent—"receiving the ballots," Bouvier 979, and "taking the votes," Anderson 394—describes the election practices of particular States.

insist that the advent of absentee voting proves otherwise. When some States authorized soldiers to vote by mail during the Civil War, ballot casting and ballot receipt were no longer simultaneous—so these States *could* have allowed a grace period for receipt.[3] But none did.[4] See *id.*, at 25; Brief for Republican Respondents 27. Instead, plaintiffs contend, ballots traveling through the war-torn country were not counted unless they were received by election day. See Brief for Respondent Libertarian Party of Mississippi 25. Why would any State be so exacting, plaintiffs ask, if federal law did not demand it?

Notably, plaintiffs admit that they cannot "precisely" tie this historical practice to the text of the election-day statutes. Tr. of Oral Arg. 119–120. That is a delicately put understatement. Plaintiffs' theory is that if the relevant

[3] Most States that authorized absentee voting during the Civil War did not permit mail-in voting. See Collins 27. Instead, they erected polling places in the field, with military officers deputized to serve as election officials. See *ibid.* Under this system, called field voting, soldiers voted in person (though outside their home precincts), and ballot casting and ballot receipt remained simultaneous. So while the dissent lumps all soldier voting together, see *post*, at 703–704, the practice in most States does not shed light on whether States thought that mail-in ballots had to be received, rather than merely cast, by election day.

[4] While we accept it for the sake of argument, plaintiffs' account of this history is debatable. Two States tasked military officers, who were *not* deputized as election officials, with collecting soldiers' ballots on election day and then sending the ballots to state election officials for counting—which meant that ballots were not received into official custody until after election day. 1866 Nev. Stats. p. 215; 1864 R. I. Acts & Resolves p. 4. Plaintiffs insist that these ballots were still "effectively received into official custody on Election Day" because military officers were tasked with "certify[ing] the legitimacy of the votes" before sending them. Brief for Respondent Libertarian Party of Mississippi 32. But it is not clear why collection and certification by military officers should be treated as "effectiv[e] recei[pt]" by the State. *Ibid.* And if "effectiv[e] recei[pt]" rather than actual receipt is the standard, then why doesn't Mississippi's law—which requires all ballots to be received by the Postal Service or common carrier by election day—pass muster?

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States could have changed the rules, they would have changed the rules. Yet despite a deep dive into the historical record, plaintiffs have found no evidence that any of these States wanted to extend ballot-receipt deadlines, much less that they thought federal law prevented them from doing so.[5]

Plaintiffs treat this "federal law made me do it" theory as obvious, but state legislatures may have used an election-day deadline for any number of reasons. For instance, they might have shared plaintiffs' view that an election-day deadline avoids the appearance of fraud from late-arriving ballots. See D. Inbody, The Soldier Vote 41 (2016) ("Concern for voter fraud was always at the forefront of legislative action in connection with the soldier vote"). They might have believed it essential to election integrity to open soldier ballots in the public's presence, which was possible only if ballots arrived by the day the community gathered for in-person voting. See 1864 N. Y. Laws p. 551 (requiring soldier ballots to be "publicly opened"); 1865 Ill. Laws p. 61 (same); see also 1864 Pa. Laws No. 871, §§6, 35, pp. 991, 998 (providing that soldiers' qualifications to vote "may be challenged" by any other voter as if "he were personally present"). They might have thought it efficient for election officials to accept absentee ballots when the officials were already assembled for in-person voting. See *id.*, §34, pp. 997–998 (soldier ballots to be opened "in the presence of the election board"). Frankly,

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[5] The dissent, which treats the inference from history as dispositive, uncritically accepts plaintiffs' version of events. It asserts—without citation—that States during the Civil War "wanted to ensure that soldiers had a voice in selecting the officials who would direct the deadly conflict in which they were engaged." *Post*, at 706. Abraham Lincoln had a less rosy view: In his annual message to Congress, President Lincoln estimated that at least 90,000 soldiers were unable to vote in the 1864 Presidential elections because "the laws of [their] States" did not permit them to "vote away from their homes." Cong. Globe, 38th Cong., 2d Sess., App. 3 (1864). That several States did not allow soldiers to vote absentee at all belies the dissent's narrative that States did everything in their power to enable the soldier vote.

in this first experiment with absentee voting, extending the deadline might not have even occurred to them. Habit has force, even in wartime. Plaintiffs assume that state legislatures had a single goal—enabling the soldier vote—and went as far as they could to achieve it.[6] But as we have frequently observed, "[n]o statute pursues a single policy at all costs." *Bartenwerfer* v. *Buckley*, 598 U. S. 69, 81 (2023). That principle applies to wartime statutes too.

At bottom, plaintiffs' theory is that because we are governed by 19th-century election-day laws, we are also governed by 19th-century voting practices. Carried to its logical conclusion, this theory would call into question the way modern elections work. As plaintiffs acknowledge, States might need to adjudicate voter qualifications by election day, as was done in the 19th century. See Tr. of Oral Arg. 89–91. Election officials suggest that doing so would be difficult, if not impossible. See Brief for Local Election Officials et al. as *Amici Curiae* 5–12. After all, America's population has grown since then, as has the portion of its population eligible to vote and the practice of absentee voting. The neighborhood-watch approach to election security no longer suffices; States have developed more sophisticated methods of adjudicating voter qualifications. See *ibid.* Early voting would also be at risk, because in the 19th century, the polls were open only on election day itself. See, *e. g.*, Ill. Rev. Stat., ch. 37, § 14 (1845); 1852 Ind. Acts p. 262; see also R. Bensel, The American Ballot Box in the Mid-Nineteenth Century 35–37 (2004). If these results were dictated by ordinary meaning, we would of course be bound to see them through. But historical practice, detached from statutory text, is not controlling. Statutes do not "tra[p] in amber"

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[6] The dissent dismisses the possibility that States might have had policy reasons for using an election-day receipt deadline, *post*, at 706–707—then spends approximately six pages extolling the policy reasons for using an election-day receipt deadline, *post*, at 712–718.

every contemporary practice on the same subject matter. *United States* v. *Rahimi*, 602 U. S. 680, 691 (2024).

Moreover, even accepting plaintiffs' interpretive approach, it is not clear why 19th-century election practices are dispositive. Plaintiffs focus on them because the first two election-day statutes were enacted in that period. But shortly after the third statute was enacted in 1914, absentee voting became popular again as a result of World War I—and this time, some States began counting absentee ballots received after election day.[7] See 1918 Md. Laws, at 130; 1919 Kan. Sess. Laws, at 252–253; see also Cal. Political Code ch. 14, §§ 1359(b)–(c), 1360, at 363–364. If we interpret the election-day statutes by drawing inferences from state behavior, it is unclear why we cannot account for the time of the third statute too. And once we move beyond the 19th century, historical practice undercuts plaintiffs' position.

In any event, plaintiffs have another problem: Their interpretation of the election-day statutes is at odds with UOCAVA, which (as discussed) presupposes that States retain the power to set ballot-receipt deadlines.[8] Plaintiffs

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[7] The dissent brushes off these World War I statutes as "short-lived outlier[s]," *post*, at 704, but relies heavily on Civil War mail-in voting statutes that were themselves "short-lived outlier[s]," see *supra*, at 686–687, and n. 3; Benton 314–315; see also *post*, at 708–710 (relying on a lone Montana state-court decision).

[8] To escape the force of the related-statute canon—which all agree is the canon relevant here—the dissent mischaracterizes it. See *post*, at 711–712. The dissent selectively quotes from *West Virginia Univ. Hospitals, Inc.* v. *Casey*, 499 U. S. 83, 100–101 (1991), to suggest that a later-enacted statute can inform the meaning of a related, earlier one only in extreme circumstances. *Post*, at 711–712. But a later enactment will "often change the meaning that would otherwise be given to an earlier provision that is ambiguous." See A. Scalia & B. Garner, Reading Law: The Interpretation of Legal Texts 330 (2012). When faced with such ambiguity, we interpret the earlier provision "to contain that permissible meaning which fits most logically and comfortably into the body of both previously and subsequently enacted law." *West Virginia Univ. Hospitals*, 499 U. S., at 100. If the dissent thought that the term "election" unambiguously en-

and their *amicus*, the United States, offer various ways to "reconcile" their interpretation of the election-day statutes with UOCAVA. Tr. of Oral Arg. 79–80. Their theories are unpersuasive.

Plaintiffs and the United States cannot even agree among themselves on how this reconciliation should work. The United States argues that UOCAVA creates an exception to the ballot-receipt deadline set by the election-day statutes. In its view, States may count the absentee ballots of military and overseas voters even if they arrive after election day. Brief for United States as *Amicus Curiae* 24. Plaintiffs cannot quite stomach that interpretation, see Tr. of Oral Arg. 79–80, 85; accord, *post*, at 711–712, and for good reason: UOCAVA is not worded like an exception. It does not authorize States to create ballot-receipt deadlines; rather, it presumes that States have that authority already. See, *e. g.*, 52 U. S. C. §20303(b)(3) (federal absentee ballots "shall not be counted" if a State receives the voter's state absentee ballot by "the deadline for receipt of [that] ballot under State law").

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Plaintiffs' efforts to explain UOCAVA fare no better. Plaintiffs initially argued that UOCAVA recognizes States' authority to set ballot-receipt deadlines *before* but not *after* election day. See Brief for Respondent Libertarian Party of Mississippi 42 (arguing that Congress tied the ballot-receipt deadline to state law "because at least one state at the time required absentee ballots to be received *before* Election Day"); Brief for Republican Respondents 43–44 (similar). But UOCAVA's text draws no such distinction, and by the time oral argument rolled around, plaintiffs had seemingly abandoned the point. Instead, they stressed that UOCAVA also applies to other elections, like primaries, that the

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compassed ballot receipt, it would not need to rely so heavily on historical practice. Thus, the dissent must ask what "permissible meaning" "most logically and comfortably" fits with UOCAVA. *Ibid.* The dissent resorts to misstating the related-statute canon only because the answer to that question is so obvious.

election-day statutes do not govern. See Tr. of Oral Arg. 79–87.[9] And that, the argument goes, is the reason why UOCAVA incorporates state ballot-receipt deadlines.

But this interpretation of the statute does not work either. UOCAVA presupposes that the deadline for ballot receipt is uniformly a matter of state law; it does not distinguish between general and other elections. See, *e. g.*, 52 U. S. C. § 20303(e). And the provision directing the President's designee to ensure that ballots of overseas military voters are received by state officials "not later than the date by which an absentee ballot must be received in order to be counted" applies only to "regularly scheduled general elections," § 20304(b)(1)—exactly the elections for which plaintiffs claim the election-day statutes already set a uniform ballot-receipt deadline.[10] Given the difficulties of plaintiffs' interpretation, it is little wonder that roughly 30 States count military and overseas voters' absentee ballots that arrive after election day.

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Next, plaintiffs turn to precedent. See, *e. g.*, Brief for Respondent Libertarian Party of Mississippi 28–29; accord, *post*, at 708–710. They argue that when *Foster* defines "elec-

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[9] The dissent likewise maintains that military and overseas voters get no grace period in a general election. See *post*, at 711–712. It does not decide, though, which of plaintiffs' two proposals is correct. Compare *ibid.* (suggesting that UOCAVA references state receipt deadlines because the election-day statutes do not govern primaries), with *post*, at 712, n. 8 (suggesting that UOCAVA references state receipt deadlines because "States can set earlier deadlines" for general elections).

[10] The dissent objects that this provision "does not cross-reference state-law deadlines." *Post*, at 712, n. 9. But if the election-day statutes already established the "election" as the deadline for ballot receipt, Congress could have simply directed the designee to ensure all ballots are received by the "election." Indeed, UOCAVA elsewhere ties the timeframe for certain actions to the "election." See 52 U. S. C. § 20302(a)(8)(A) (requiring States to transmit absentee ballots "not later than 45 days before the *election*" (emphasis added)). That Congress did not do so here suggests that the "election" is not synonymous with the "date by which an absentee ballot must be received in order to be counted in the election." § 20304(b)(1).

tion" as the "combined actions of voters and officials meant to make a final selection of an officeholder," it must mean the "combined actions" of ballot casting and receipt. 522 U. S., at 71. *Foster*, however, does not support that conclusion.

In *Foster*, we considered whether Louisiana's system for open primary elections was consistent with the federal election-day statutes. See *id.*, at 70. Unlike a conventional, party-run primary, Louisiana's primary was run by the State. And if a candidate got a majority of votes in the primary, that was it: The candidate was "elected, and no further act [was] done on federal election day to fill the office in question." *Ibid.* (internal quotation marks and citation omitted). While this system was in place, "over 80% of the contested congressional elections in Louisiana . . . ended as a matter of law with the open primary." *Ibid.* We held that this system violated the federal election-day statutes because the "contested selection of candidates" could be "concluded as a matter of law before the federal election day." *Id.*, at 72.

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Foster is not about ballot receipt and nowhere mentions it. In fact, *Foster* does not address absentee voting at all. It decides a narrow issue narrowly, "hold[ing]" only that an election "may not be *consummated* prior to federal election day." *Id.*, at 72, n. 4 (emphasis added). True, *Foster* defines "election" to involve the "combined actions" of "voters and officials." *Id.*, at 71. But there is no reason to think that *Foster* is referring to the backend act of ballot receipt rather than the frontend acts necessary for the electorate to make its choice—like establishing the rules for the election, setting up polling sites, or providing ballots. *Foster* specifically refuses to "isolat[e] precisely what acts a State must cause to be done" on election day. *Id.*, at 72. Thus, plaintiffs overread *Foster* to do exactly what it disavows. See also *post*, at 710.

Plaintiffs, joined by the dissent, also place significant weight on a decision from the Montana Supreme Court, *Maddox* v. *Board of State Canvassers*, 116 Mont. 217, 149 P. 2d

112 (1944). See, *e. g.*, Brief for Republican Respondents 39–40; accord, *post*, at 708–710. *Maddox* held unlawful a new Montana statute that allowed soldier ballots to be received after election day. But *Maddox* turned on existing state law, which the new law did "not . . . amend or repeal." 116 Mont., at 220, 149 P. 2d, at 113; see *id.*, at 220–222, 149 P. 2d, at 114. An existing statute required all ballots to be "delivered to the election officials and deposited in the ballot box before the closing of the polls on election day." *Id.*, at 223, 149 P. 2d, at 115. "[S]ince the state law provide[d] for voting by ballots deposited with the election officials," *Maddox* reasoned, "that act must be completed on the day designated by state and federal laws." *Ibid.* *Maddox* thus viewed receipt as governed by state, not federal, law. Indeed, both the concurring and dissenting opinions stressed that the majority's opinion left the Montana legislature free to "authoriz[e] the reception of and counting of ballots subsequent to the election day fixed by law." *Id.*, at 228, 149 P. 2d, at 117 (Morris, J., concurring); see *id.*, at 229, 149 P. 2d, at 118 (Erickson, J., dissenting in part) ("The majority does not question the right of the legislature to make provision for the counting of ballots which are not received until after election day"). So if *Maddox* is instructive, it is a point in favor of Mississippi's interpretation, not plaintiffs'.

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And if plaintiffs accept the premise that interpretations of the election-day statutes from the 1940s are relevant, they are up against more than *Maddox*. During the 1940s, seven other States authorized the receipt of ballots after election day, reflecting the belief that they were free to do so. See Hearings on H. R. 3436 before the House Committee on Election of President, Vice President, and Representatives in Congress, 78th Cong., 1st Sess., 100–104 (1943). Plaintiffs offer no evidence that any of these laws was ever even challenged under the election-day statutes. In addition, the same year that *Maddox* was decided, Congress passed a law providing that "'any extension of time for the receipt of ab-

sentee ballots permitted by State laws shall apply'" to special federal war ballots "'cast'" by soldiers. Act of Apr. 1, 1944, 58 Stat. 146. This precursor to UOCAVA suggests that Congress itself did not understand the federal election-day laws to prevent States from setting the deadline for ballot receipt after election day.

Finally, plaintiffs assert that requiring ballots to be received by election day protects election integrity and increases voter confidence in election results. See, *e. g.*, Brief for Republican Respondents 46–48; accord, *post*, at 712–718. As we have said time and again, however, policy arguments are properly directed to legislatures, not courts. See, *e. g.*, *SAS Institute Inc.* v. *Iancu*, 584 U. S. 357, 368 (2018); *BP p.l.c.* v. *Mayor and City Council of Baltimore*, 593 U. S. 230, 245 (2021). The question today is not whether requiring ballots to be received by election day is a good or bad idea; the question is whether the idea has made its way into the United States Code.

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Regardless, plaintiffs' definition of "election" would do little to address the concerns they identify. Plaintiffs and the dissent argue that if we uphold Mississippi's law, States could put party bosses, ballot harvesters, or Uber drivers in charge of collecting ballots. See Brief for Republican Respondents 22; *post*, at 713. Yet this would also be permissible under their interpretation, so long as the ballots are delivered by election day. As the dissent concedes, the relevant statutes regulate "only the timing of election processes, not their manner." *Post*, at 708. So concerns about the "manner" of ballot delivery have nothing to do with this case.

Plaintiffs also stress that Mississippi's law may give rise to the appearance of fraud because election results may appear to flip after election day. See, *e. g.*, Brief for Republican Respondents 47–48; Brief for United States as *Amicus Curiae* 29; accord, *post*, at 716–717. This is a significant concern. See *Democratic National Committee* v. *Wisconsin State Legislature*, 592 U. S. 1039, 1047 (2020) (KAVANAUGH,

J., concurring in denial of application to vacate stay) (discussing the "chaos and suspicions of impropriety that can ensue if thousands of absentee ballots flow in after election day and potentially flip the results of an election"). But even under plaintiffs' interpretation, last-minute flips are possible, because the election-day statutes set no deadline for counting ballots or certifying election results. Brief for Respondent Libertarian Party of Mississippi 13.

Election fraud and its appearance are serious issues. Like other such issues, however, they must be addressed through the democratic process. The election-day statutes are proof of concept: When voting on different days in different States sparked allegations of fraud, Congress set a nationally uniform deadline for voting. If varied deadlines for ballot receipt similarly call for a national solution, the American people must choose it through their elected representatives.

IV

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There is one last, late-breaking matter. For the first time in their reply briefs before the Fifth Circuit, plaintiffs argued that Mississippi's election system violates the election-day statutes because the Postal Service and common carriers allow mail to be recalled. See, *e. g.*, United States Postal Service, Mailing Standards of the United States Postal Service, Domestic Mail Manual § 507.5 (Apr. 6, 2026). According to plaintiffs, a voter who regrets her choice after election day may nullify her vote by recalling her ballot from the Postal Service or a common carrier before it is delivered to election officials. And that, plaintiffs insist, means that the electorate's choice is not actually made as of election day.

Plaintiffs have never independently challenged this aspect of Mississippi law. Ballot recall was not the basis for this litigation; it is nowhere mentioned in plaintiffs' complaints. Even now, plaintiffs frame the possibility of post-election-day recall as simply one reason why counting ballots received

after election day violates the federal election-day statutes. See, *e. g.*, Brief for Respondent Libertarian Party of Mississippi 12. For its part, Mississippi denies that voters are allowed to recall their ballots. See Brief for Petitioner 41 (citing Miss. Code Ann. § 23–15–637(3)). And it does not dispute that post-election-day recall would violate the election-day statutes.

Two principles are important here. First, post-election-day receipt, considered on its own, does not conflict with the election-day statutes. See Part II, *supra*. Second, state law is preempted by the federal election-day statutes only "'so far as the conflict extends.'" *Foster*, 522 U. S., at 69 (quoting *Ex parte Siebold*, 100 U. S. 371, 384 (1880), abrogated on other grounds by *Glasgow* v. *Moyer*, 225 U. S. 420 (1912)); see *Siebold*, 100 U. S., at 392 (Congress's power to regulate elections "supersede[s]" state law "so far as it is exercised, and no farther"). So even if plaintiffs are right about Mississippi law, they would still lose the challenge they have pressed in this litigation: that post-election-day ballot receipt is itself unlawful.

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The Framers recognized the difficulty of crafting election laws "applicable to every probable change in the situation of the country." The Federalist No. 59, at 362. So instead of constitutionalizing election law, they decided that "a discretionary power over elections" needed to be lodged "somewhere." *Ibid.* Suffice it to say, that power was not lodged in this Court. The election-day statutes say nothing about ballot receipt, and we cannot add to the words Congress chose.

The judgment of the Court of Appeals is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE ALITO, with whom JUSTICE THOMAS and JUSTICE GORSUCH join, and with whom JUSTICE KAVANAUGH joins as to all but Parts II–C–2 and III, dissenting.

Federal law designates "the Tuesday next after the first Monday in November" as "election day," 3 U. S. C. § 21, and provides that elections for federal office must be held on that date. See 2 U. S. C. §§ 1, 7; 3 U. S. C. § 1. As the Court explains, an election is "the expression of the electorate's choice," *ante*, at 682, but because the electorate is a collective body consisting of many individuals, the way in which it expresses its choice is less straightforward than would be the case if the electorate were a single individual. If the electorate were an individual, it could issue a document declaring that specified men and women were selected to fill the federal offices for which the candidates had competed, but because the electorate is a collective body, it cannot express its selections in that way. Instead, its choices are embodied in the collection of ballots cast by the individuals who make up the electorate. Taken all together, this collection is the equivalent of a single document declaring the winner of each race. This expression of the electorate's choices is conveyed to the responsible election officials when the collection of individual ballots is completed. At that point, the electorate authoritatively expresses its choices, and what the election-day statutes demand is that this authoritative choice be made on election day. If ballots received after election day are added to the set of ballots that dictate the election's outcome, the electorate's choice does not occur on election day, and the federal election-day statutes are violated.

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In this case, we must apply this interpretation of the federal election-day statutes to a Mississippi law that requires state election officials to accept ballots that arrive up to five days after election day. The acceptance of these late-arriving ballots effectively postpones the date on which the electorate's choice is made, and federal law precludes that postponement.